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MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012

ANNEX 25
MSC RESOLUTION MSC.571(109)
(adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
THE MARITIME SAFETY COMMITTEE,
RECALLING article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO that the International Conference on the Safety of Fishing Vessels, 2012 (the Conference) had adopted the Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (the Agreement),
RECALLING FURTHER that the Conference, when adopting the Agreement, requested the
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RECALLING FURTHER that the Conference, when adopting the Agreement, requested the Organization to intensify its efforts to provide Parties and Member States with the assistance they might need in implementing the Agreement,
RECOGNIZING that the entry into force and implementation of the Agreement will make a significant contribution to the safety of fishing vessels,
RECOGNIZING ALSO the need to provide guidance for a unified implementation to those States that have already become Parties to the Agreement or are in the process thereof,
RECALLING resolution A.1186(33) on the Survey guidelines under the harmonized system of survey and certification (HSSC), 2023, which provides guidance for conducting surveys required by relevant IMO instruments,
HAVING CONSIDERED, at its 109th session, the recommendation made by the Sub - Committee on Implementation of IMO Instruments, at its tenth session,
1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town
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1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town Agreement of 2012 (the Interim Guidance), set out in the annex to the present resolution;

2 INVITES Parties and Member States concerned to:

.1 follow the Interim Guidance on how to comply with the requirements set forth in the Agreement for a harmonized implementation;

.2 consider its provisions when developing national legislation governing fishing vessel safety;

.3 consider establishing appropriate measures in order to ensure that compliance of existing fishing vessels with the relevant requirements of the Agreement is documented, as appropriate; and

.4 consider paying particular attention to the case where a flag State has a pre-existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State.

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circumstances, the higher national standards should be retained for that State.

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6.2 Vessels of non-Parties, No more favourable treatment
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APPENDIX 1 GUIDELINES FOR FLAG STATES

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ABBREVIATIONS AND ACRONYMS

Agreement Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977

COLREG 1972 Convention on the International Regulations for Preventing
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of Fishing Vessels, 1977

COLREG 1972 Convention on the International Regulations for Preventing Collisions at Sea, 1972

EEZ Exclusive economic zone

FAO Food and Agriculture Organization of the United Nations

IFVSC International Fishing Vessel Safety Certificate

GMDSS Global Maritime Distress and Safety System

HSSC Harmonized System of Survey and Certification

ILO International Labour Organization

ITU RR Radio Regulations of the International Telecommunication Convention

LL 66 Convention International Convention on Load Lines, 1966

MoU Memorandum of Understanding

Organization International Maritime Organization (IMO)

PSC Port State Control

PSCO Port State Control Officer

RO Recognized Organization

SOLAS 74/88 International Convention for the Safety of Life at Sea (SOLAS), 1974, as modified by SOLAS Protocol 1988

1993 Torremolinos Protocol Torremolinos Protocol of 1993 relating to the Torremolinos
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(SOLAS), 1974, as modified by SOLAS Protocol 1988

1993 Torremolinos Protocol Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977

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PREFACE

The safety of large fishing vessels is a key priority for the Parties and Member States of the International Maritime Organization (IMO). The first attempt to regulate this larger fishing vessel sector at the Organization led to the adoption of the Torremolinos International Convention for the Safety of Fishing Vessels, 1977. During the 1980s it became clear that an insufficient number of countries were ever going to ratify the Convention. This led to the adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International
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adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (1993 Torremolinos Protocol). Again, the rate of ratifications was insufficient to allow the 1993 Torremolinos Protocol to enter into force. This was further amended by the Cape Town Agreement of 2012 and this Interim Guidance is intended to assist Parties and Member States in ratifying and implementing this Agreement.

This Interim Guidance sets out advice for Parties and Member States who may have already ratified the Agreement as well as for those who have not yet done so. It also contains Interim Guidance for Parties and Member States who have pre -existing higher safety standards and how these can be safeguarded.

The Interim Guidance is structured in two parts. Part A deals with the articles of the Agreement and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance
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and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance contains additional information which, while not forming part of the Agreement, is provided for the information of Parties and Member States. The Interim Guidance also contains a number of appendices which may be helpful.

It is the prerogative of each ratifying Party to implement the requirements of the Agreement in accordance with its own national legal framework as well as the operational arrangements applicable within its jurisdiction.

PART A INTERIM GUIDANCE FOR IMPLEMENTATION

SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the
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SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (hereinafter referred to as "the Agreement "), is the only internationally updated and binding instrument that addresses the design, construction and equipment of fishing vessels. It is recognized that the entry into force and implementation of the Agreement would make a significant contribution to the safety of ships in general and the safety of fishing vessels in particular.

1.1.2 The Interim Guidance aims to assist Parties and Member States in effectively implementing the provisions of the Agreement into their national laws, regulations and other measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines
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measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations provide guidance related to administrative requirements and legal implications, respectively, which may also be useful to Administrations when developing their own laws and regulations or other measures for the safety of fishing vessels, including those related to the implementation of the Agreement. Furthermore, part B of the Code of Safety for Fishermen and Fishing Vessels , 2005 Edition would serve as a guide for Administrations in developing provisions for vessels of 24 metres in length and over but less than the length limit prescribed in chapters IV, V, VII and IX of the Agreement, as called for in paragraphs (4) and (5) of article 3 of the 1993 Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in
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Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in the implementation of the provisions of the Agreement. It is therefore expected that Member States which are planning to deposit an instrument of ratification, acceptance, approval or accession, as appropriate, of the Agreement could benefit from this Interim Guidance.

1 The Interim Guidance may be applied in recognition of the broader international duties and obligations of Parties, Member States and flag States regarding the flagging and control of fishing vessels, together with their responsibilities to manage fishing and fishing -related activities in a manner that ensures the conservation and sustainable use of living marine resources and ensuring decent onboard working and living conditions for fishing vessel personnel. Parties, Member States and flag States may, in this regard, be guided by the following instruments, inter alia:
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guided by the following instruments, inter alia:

.1 ILO's Guidelines on flag State inspection of working and living conditions on board fishing vessels;

.2 FAO Code of conduct for responsible fisheries (article 8 fishing operations);

.3 FAO Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing (PSMA);

.4 FAO Voluntary guidelines for flag state performance of 2014;

.5 FAO/ILO/IMO Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations;

.6 FAO/ILO/IMO Code of Safety for Fishermen and Fishing Vessels, part B; and

.7 FAO Technical guidelines on best practices to improve safety at sea in the fisheries sector.

1.2.2 The Interim Guidance highlights the benefits of ratification or accession, as appropriate, and the flexible mechanism established for implementation, in particular on existing fishing vessels.

1.2.3 The Interim Guidance also provides useful information to stakeholders in the industry, such as fishing vessel owners, fishing vessel personnel, shipyards and equipment manufacturers, on how to comply with the requirements set forth in the Agreement. It also addresses other relevant issues, such as the human element and the guiding principles of the III Code.

1.2.4 Parties and Member States which already have a higher standard than prescribed in the Agreement, because they have implemented the provisions of the 1993 Torremolinos Protocol or a regional agreement for example, should not lower their standards when
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Protocol or a regional agreement for example, should not lower their standards when implementing the provisions of the Agreement. They should ensure that they do not take any actions which may inadvertently undermine their pre-existing higher standards.

1.3 Scope

1.3.1 The Interim Guidance provides a clear distinction between the technical requirements applicable to new and those applicable to existing vessels.

1.3.2 The Agreement offers a wide range of flexibility in terms of implementation and application. The Interim Guidance provides information on available flexibility options for both new and existing fishing vessels, and, in particular, on options that are related to progressive implementation of provisions on existing fishing vessels.

1.3.3 This Interim Guidance covers areas like definitions, interpretation and application of the articles of the Agreement and the 1993 Torremolinos Protocol as well as application,
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the articles of the Agreement and the 1993 Torremolinos Protocol as well as application, exemptions, equivalents, surveys and certificates. There is a dedicated appendix dealing with the system of survey and certification, based on the structure of the Survey guidelines under the harmonized system of survey and certification (HSSC) , 2023, adopted by resolution A.1186(33). It is noted that the Agreement is currently not a relevant instrument of the HSSC.

1.3.4 Summary assistance tables for implementation have been inserted at the end of each section of part A and at the end of section 8 of part B of the Interim Guidance with the aim of facilitating the implementation of the Agreement. For reference, the responsibilities under the capacities as flag, port or coastal States in relation to the relevant provisions have been included. In addition, other supportive tools have been included for interest and assistance.
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included. In addition, other supportive tools have been included for interest and assistance.

1.3.5 The Interim Guidance provides information regarding some of the benefits of ratification, acceptance, approval or accession, as appropriate, and implementation of the Agreement. This includes the expected reduction of accidents and in particular collisions within the waters of the flag State, the reduction of potential costs of search and rescue operations and pollution risks, with a positive impact on the national economy, resources and the environment.

1.3.6 Additionally, to assist Parties, Member States and stakeholders in the industry, the appendices provide guidelines for flag States, including abandon ship training and drills, radio equipment, shipborne navigational equipment, fire -fighting measures and life -saving appliances summary tables.

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appliances summary tables.

1.3.7 Member States ratifying or acceding to the Agreement need to ensure the provisions of the Agreement are reflected in their national law. This should also be supplemented by implementation measures. Parties should also ensure that there is coherence with th eir existing body of fishing vessel safety legislation and that there is a clear set of requirements communicated to the sector. Particular attention should be given to the case where a flag State has a pre -existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State. It is also important that any conflict of laws is avoided in such situations and that there is clarity for the
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important that any conflict of laws is avoided in such situations and that there is clarity for the industry as to what standards apply.

1.3.8 Parties should provide for measures to ensure compliance with the provisions of the Agreement to ensure effective enforcement of the Agreement.

SECTION 2 OVERVIEW OF THE AGREEMENT

2.1 Application and entry-into-force criteria of the Agreement

2.1.1 Unless expressly provided otherwise, the provisions of the Agreement apply to new fishing vessels of 24 metres in length and over.

2.1.2 The Agreement applies to seagoing fishing vessels including vessels also processing their catch entitled to fly the flag of a Party. Its provisions do not apply to vessels exclusively used:

.1 for sport or recreation;

.2 for processing fish or other living resources of the sea;

.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

2.2.1 The Agreement , which updates and amends a number of provisions of the 1993 Torremolinos Protocol, consists of articles, an annex and an appendix as follows:

ARTICLES OF THE AGREEMENT

Article 1 General obligations2

Article 2 Interpretation and application of the 1993 Torremolinos Protocol and the 1977 Torremolinos Convention3

Article 3 Signature, ratification, acceptance, approval and accession

Article 4 Entry into force

2 Article 1 provides information to the Parties to the Agreement on general obligations. It also states that the annex to the Agreement shall constitute an integral part of the Agreement and a reference to the Agreement shall constitute at the same time a reference to the annex thereto.

3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol
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3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol shall apply to the Agreement. In applying these articles, the regulations in the annex to the 1993 Torremolinos Protocol, and the regulations in the annex to the 1977 Torremolinos Convention, a reference to "the present Protocol", or to "the Convention", respectively, shall be deemed to mean a reference to the Agreement. (See also articles of the 1993 Torremolinos Protocol relating to the Agreement).

ARTICLES OF THE 1993 TORREMOLINOS PROTOCOL RELATING TO THE AGREEMENT

Article 1 General obligations

Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

Article 6 Communication of information

Article 7 Casualties to fishing vessels5

Article 8 Other treaties and interpretation

Article 11 Amendments

Article 12 Denunciation

Article 13 Depositary

Article 14 Languages

ANNEX REGULATIONS FOR THE CONSTRUCTION AND EQUIPMENT OF FISHING VESSELS

Chapter I General provisions

Chapter II Construction, watertight integrity and equipment

Chapter III Stability and associated seaworthiness

Chapter IV Machinery and electrical installations and periodically unattended machinery spaces

Part A General

Part B Machinery installations

Part C Electrical installations

Part D Periodically unattended machinery spaces

4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.

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4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.

5 Interim Guidance regarding article 7 of the 1993 Torremolinos Protocol is provided under section 8.
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Chapter V Fire protection, fire detection, fire extinction and fire fighting

Part A General

Part B Fire safety measures in vessels of 60 metres in length and over

Part C Fire safety measures in vessels of 45 metres in length and over but
less than 60 metres

Chapter VI Protection of the crew

Chapter VII Life-saving appliances and arrangements

Part A General

Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

Chapter IX - Radiocommunications

Part A Application and definitions

Part B Ship requirements

Chapter X Shipborne navigational equipment and arrangements

APPENDIX CERTIFICATES AND RECORD OF EQUIPMENT

1 Form of Safety Certificate for Fishing Vessels

2 Form of Exemption Certificate

3 Form of Supplement to the International Fishing Vessel Safety Certificate

SECTION 3 APPLICATION AND SURVEYS

3.1 Application, exemptions and equivalents (regulations I/1 to 5)

3.1.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes:

1. Administrations may decide to use gross tonnage (GT) in place of length (L) as the basis for measurement for all chapters. For those Administrations, the Agreement will not apply to vessels
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measurement for all chapters. For those Administrations, the Agreement will not apply to vessels of less than 300 GT (regulation I/1(2) to (3)).

2. Where a Party has concluded that it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels, the Party may, in accordance with a plan, progressively implement the provisions of these chapters over a period of up to five or 10 years, depending on the chapter (regulation I/1(4) to (5)).

3. The Agreement offers several possibilities to Administrations to exempt vessels from its requirements. Administrations may, for example, exempt any vessel from any of the requirements of all chapters of the Agreement, provided the vessel complies with adequate safety requirements to ensure the overall safety of the vessel and persons on board and that the vessel is not operating on the high seas (regulation I/3(3)).

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on the high seas (regulation I/3(3)).
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CHAPTER I GENERAL PROVISIONS SUMMARY

3.1.2 Chapter I deals with general matters, surveys and certification. It contains general provisions for:
.1 application (regulation 1);

.2 definitions (regulation 2);

.3 exemptions (regulation 3);

.4 equivalents (regulation 4); and

.5 repairs, alterations and modifications (regulation 5).

GUIDANCE FOR IMPLEMENTATION

Tonnage/length equivalents (regulations I/1(2) to (3))

3.1.3 All chapters of the Agreement use vessel length (L) as the basis for measurement. However, many flag Administrations use vessel gross tonnage in their national legislation for that purpose and may wish to use it when implementing the provisions of the Agreement.
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that purpose and may wish to use it when implementing the provisions of the Agreement.

1. The Agreement allows the Administration to use gross tonnage (GT), as specified in regulation I/1(2), in place of length (L) as the basis for measurement for all chapters.

2. Each Party which avails itself of this possibility shall communicate to the Organization the reasons for that decision.

Progressive implementation (regulations I/1(4) to (5))

3.1.4 It may not be possible for some countries to implement all of the measures of the Agreement at the same time.

3.1.5 A Party to the Agreement that has concluded it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels may progressively implement those measures in accordance with a plan. The provisions of chapter IX may be implemented over a period of no more than 10 years , the provisions of
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chapter IX may be implemented over a period of no more than 10 years , the provisions of chapters VII, VIII and X over a period of no more than five years.

3.1.6 A "Party" is defined in the Agreement as a State for which the Agreement has entered into force (article 2(a) of the 1993 Torremolinos Protocol). As the term "Party" is used in the provisions concerning the progressive implementation (regulation I/1(4) to (5)) instead of the term "Administration", it indicates that these provisions will only apply when the Agreement comes into force for the State.

3.1.7 Therefore, for a State which deposits an instrument of ratification, acceptance , approval or accession, as appropriate, prior to the entry into force of the Agreement, the above-mentioned progressive implementation period will only start running when the Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the
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Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the Organization provide the information that is specified in regulation I/1(5).
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3.1.9 The following table provides a summary of the application of the provisions of the Agreement, including the phased implementation (progressive implementation) on existing vessels.

TABLE 1: APPLICATION SUMMARY

Chapter

Application 1)
New vessels 2) Existing vessels
24-45 m
or
300-950
GT
45 m
or
950 GT
24-45 m
or
300-950 GT
45m
or
950 GT
Time to
implement after
entry into force
3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery

N/A
V Fire safety
---

3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery

N/A
V Fire safety

N/A
VI Crew protection

N/A
VII Life-savings
appliances

5) 5 years
VIII Emergency
procedures

5 years
IX Radiocommunications

10 years
X Navigational
equipment

5 years

Notes:
1) The flag Administration may decide to use gross tonnage (GT) in place of vessel length (L) as the basis for measurements for all chapters (regulation I/1(2)).

2) A new vessel is a vessel built after the entry into force of the Agreement (regulation I/2(1)).

3) A Party may, in accordance with a plan, progressively implement the provisions of chapters VII, VIII, IX and X on existing vessels (regulation I/1(4) to (5)).

4) The only requirements of chapter I that apply to existing vessels are in regulations I/2 to 5.

5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and
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5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and radar transponders (regulations VII/1(2) and VII/13 to 14).

Exemptions (regulation I/3)

3.1.10 The Agreement offers several possibilities to Administrations to exempt vessels from its requirements.

3.1.11 Administrations may exempt any vessel which embodies features of a novel kind from any of the requirements of chapters II, III, IV, V, VI and VII according to conditions provided in regulation I/3(1). The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(1) and I/3(4) provide further details on this.

3.1.12 Exemptions from the requirements of chapter IX are dealt with in regulation IX/3 and exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to

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exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(2) and I/3(4) provide further details on this.

3.1.13 Administrations may exempt any vessel from any of the requirements of any chapter of the Agreement, if they consider that the application is unreasonable and impracticable in view of the type of vessel, the weather conditions and the absence of general navigational hazards, provided:

.1 the vessel complies with adequate safety requirements for the service for which it is intended and are such as to ensure the overall safety of the vessel and persons on board;

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it is intended and are such as to ensure the overall safety of the vessel and persons on board;

.2 the vessel is operating solely in: (i) a common fishing zone under the jurisdiction of neighbouring States; or ii) the EEZ of the flag State; or (iii) the EEZ or a marine area under the jurisdiction of another State, in accordance with an agreement between the States concerned in accordance with international law; and

.3 the Administrations notify the Organization of the terms and conditions on which such exemption is granted.

3.1.14 Regulation I/3(3) provides more detailed information on this.

Equivalents (regulation I/4)

3.1.15 Instead of following the requirements of the Agreement regarding a particular fitting, material, appliance or apparatus, or type thereof, to be fitted or carried in a vessel, the Agreement permits the Administration to allow equivalents. This is if the Administration is satisfied by trial

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permits the Administration to allow equivalents. This is if the Administration is satisfied by trial thereof or otherwise that an equivalent is at least as effective. The particulars of such equivalents, together with a report on any trials made, shall be communicated to the Organization. Regulation I/4 provides further details on this.

Repairs, alterations and modifications (regulation I/5)

3.1.16 A vessel that undergoes repairs, alterations, modifications and related outfitting shall continue to comply with at least the requirements previously applicable to the vessel.

3.1.17 Repairs, alterations and modifications of a major character and related outfitting shall meet the requirements for a new vessel only to the extent of such repairs, alterations and modifications and as the Administration deems reasonable and practicable.

3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

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3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

.1 any change that substantially alters the dimensions of a vessel, e.g. lengthening by adding new mid-body; or

.2 any change that substantially increases the efficiency of a vessel and/or prolongs the vessel's service life, e.g.:

.1 renewal of more than 50% of crew accommodations;

.2 renewal of propulsion machinery and/or wheelhouse;

.3 renewal of deck machinery and/or winch system;

.4 renewal of fish processing equipment; and

.5 renewal of refrigeration systems for the preservation of the catch.

3.1.19 Regulation I/5 provides further details on this.
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Summary assistance table for implementation

Regulation to implement Content

Summary assistance table for implementation

Regulation to implement Content	III Code (resolution A.1070(28)) Supportive tools
Function Implementation reference	
Regulation I/1 Application	
Flag State	
Part 1 Common areas, paragraph 6.1	
Part 2 Flag States, paragraphs 15.1, 16.1 and 22.1 to .2	
National standards developed for the implementation of SOLAS 1974 may be useful for these items	
Regulation I/2 Definitions	
Regulation I/3 Exemptions	
Regulation I/4 Equivalents	
Regulation I/5 Repairs, alterations and modifications	

3.2 Surveys and certificates (regulations I/6 to 17)

3.2.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes:

1. Administrations may entrust the inspections and surveys either to surveyors nominated for the purpose or to organizations recognized by it (regulation I/6(1)).
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purpose or to organizations recognized by it (regulation I/6(1)).

2. Administrations may exempt vessels from the annual surveys if it considers the application is unreasonable and impracticable and expand the "time window" of the periodical and intermediate surveys (regulation I/1(6), 7(1)(c), 8(1)(c) and 9(1)(c)).

CHAPTER I SURVEYS AND CERTIFICATES SUMMARY

3.2.2 Chapter I also deals with survey and certification requirements. It makes provisions for:

.1 inspections and surveys and the nomination of surveyors or recognized organizations by the Administration (regulation 6);

.2 surveys on the life -saving appliances and other emergency equipment (regulation 7);

.3 survey on the radio installations (regulation 8);

.4 survey on the structure, machinery and other equipment (regulation 9);

.5 maintenance of the condition of the vessel and its equipment after survey (regulation 10); and

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.5 maintenance of the condition of the vessel and its equipment after survey (regulation 10); and

.6 issuance of certificates, duration, forms of certificates and their acceptance, as well as certification and accompanying privileges (regulations 11 to 17).

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THE MARITIME SAFETY COMMITTEE,
RECALLING article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO that the International Conference on the Safety of Fishing Vessels, 2012 (the Conference) had adopted the Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (the Agreement),
RECALLING FURTHER that the Conference, when adopting the Agreement, requested the
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URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
RECALLING FURTHER that the Conference, when adopting the Agreement, requested the Organization to intensify its efforts to provide Parties and Member States with the assistance they might need in implementing the Agreement,
RECOGNIZING that the entry into force and implementation of the Agreement will make a significant contribution to the safety of fishing vessels,
RECOGNIZING ALSO the need to provide guidance for a unified implementation to those States that have already become Parties to the Agreement or are in the process thereof,
RECALLING resolution A.1186(33) on the Survey guidelines under the harmonized system of survey and certification (HSSC), 2023, which provides guidance for conducting surveys required by relevant IMO instruments,
HAVING CONSIDERED, at its 109th session, the recommendation made by the Sub - Committee on Implementation of IMO Instruments, at its tenth session,
1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town
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1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town Agreement of 2012 (the Interim Guidance), set out in the annex to the present resolution;

2 INVITES Parties and Member States concerned to:

.1 follow the Interim Guidance on how to comply with the requirements set forth in the Agreement for a harmonized implementation;

.2 consider its provisions when developing national legislation governing fishing vessel safety;

.3 consider establishing appropriate measures in order to ensure that compliance of existing fishing vessels with the relevant requirements of the Agreement is documented, as appropriate; and

.4 consider paying particular attention to the case where a flag State has a pre-existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State.

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circumstances, the higher national standards should be retained for that State.

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6.2 Vessels of non-Parties, No more favourable treatment
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APPENDIX 1 GUIDELINES FOR FLAG STATES

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ABBREVIATIONS AND ACRONYMS

Agreement Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977

COLREG 1972 Convention on the International Regulations for Preventing
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of Fishing Vessels, 1977

COLREG 1972 Convention on the International Regulations for Preventing Collisions at Sea, 1972

EEZ Exclusive economic zone

FAO Food and Agriculture Organization of the United Nations

IFVSC International Fishing Vessel Safety Certificate

GMDSS Global Maritime Distress and Safety System

HSSC Harmonized System of Survey and Certification

ILO International Labour Organization

ITU RR Radio Regulations of the International Telecommunication Convention

LL 66 Convention International Convention on Load Lines, 1966

MoU Memorandum of Understanding

Organization International Maritime Organization (IMO)

PSC Port State Control

PSCO Port State Control Officer

RO Recognized Organization

SOLAS 74/88 International Convention for the Safety of Life at Sea (SOLAS), 1974, as modified by SOLAS Protocol 1988

1993 Torremolinos Protocol Torremolinos Protocol of 1993 relating to the Torremolinos
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(SOLAS), 1974, as modified by SOLAS Protocol 1988

1993 Torremolinos Protocol Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977

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PREFACE

The safety of large fishing vessels is a key priority for the Parties and Member States of the International Maritime Organization (IMO). The first attempt to regulate this larger fishing vessel sector at the Organization led to the adoption of the Torremolinos International Convention for the Safety of Fishing Vessels, 1977. During the 1980s it became clear that an insufficient number of countries were ever going to ratify the Convention. This led to the adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International
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adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (1993 Torremolinos Protocol). Again, the rate of ratifications was insufficient to allow the 1993 Torremolinos Protocol to enter into force. This was further amended by the Cape Town Agreement of 2012 and this Interim Guidance is intended to assist Parties and Member States in ratifying and implementing this Agreement.

This Interim Guidance sets out advice for Parties and Member States who may have already ratified the Agreement as well as for those who have not yet done so. It also contains Interim Guidance for Parties and Member States who have pre -existing higher safety standards and how these can be safeguarded.

The Interim Guidance is structured in two parts. Part A deals with the articles of the Agreement and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance
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and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance contains additional information which, while not forming part of the Agreement, is provided for the information of Parties and Member States. The Interim Guidance also contains a number of appendices which may be helpful.

It is the prerogative of each ratifying Party to implement the requirements of the Agreement in accordance with its own national legal framework as well as the operational arrangements applicable within its jurisdiction.

PART A INTERIM GUIDANCE FOR IMPLEMENTATION

SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the
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SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (hereinafter referred to as "the Agreement "), is the only internationally updated and binding instrument that addresses the design, construction and equipment of fishing vessels. It is recognized that the entry into force and implementation of the Agreement would make a significant contribution to the safety of ships in general and the safety of fishing vessels in particular.

1.1.2 The Interim Guidance aims to assist Parties and Member States in effectively implementing the provisions of the Agreement into their national laws, regulations and other measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines
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measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations provide guidance related to administrative requirements and legal implications, respectively, which may also be useful to Administrations when developing their own laws and regulations or other measures for the safety of fishing vessels, including those related to the implementation of the Agreement. Furthermore, part B of the Code of Safety for Fishermen and Fishing Vessels , 2005 Edition would serve as a guide for Administrations in developing provisions for vessels of 24 metres in length and over but less than the length limit prescribed in chapters IV, V, VII and IX of the Agreement, as called for in paragraphs (4) and (5) of article 3 of the 1993 Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in
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Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in the implementation of the provisions of the Agreement. It is therefore expected that Member States which are planning to deposit an instrument of ratification, acceptance, approval or accession, as appropriate, of the Agreement could benefit from this Interim Guidance.

1 The Interim Guidance may be applied in recognition of the broader international duties and obligations of Parties, Member States and flag States regarding the flagging and control of fishing vessels, together with their responsibilities to manage fishing and fishing -related activities in a manner that ensures the conservation and sustainable use of living marine resources and ensuring decent onboard working and living conditions for fishing vessel personnel. Parties, Member States and flag States may, in this regard, be guided by the following instruments, inter alia:
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guided by the following instruments, inter alia:

.1 ILO's Guidelines on flag State inspection of working and living conditions on board fishing vessels;

.2 FAO Code of conduct for responsible fisheries (article 8 fishing operations);

.3 FAO Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing (PSMA);

.4 FAO Voluntary guidelines for flag state performance of 2014;

.5 FAO/ILO/IMO Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations;

.6 FAO/ILO/IMO Code of Safety for Fishermen and Fishing Vessels, part B; and

.7 FAO Technical guidelines on best practices to improve safety at sea in the fisheries sector.

1.2.2 The Interim Guidance highlights the benefits of ratification or accession, as appropriate, and the flexible mechanism established for implementation, in particular on existing fishing vessels.

1.2.3 The Interim Guidance also provides useful information to stakeholders in the industry, such as fishing vessel owners, fishing vessel personnel, shipyards and equipment manufacturers, on how to comply with the requirements set forth in the Agreement. It also addresses other relevant issues, such as the human element and the guiding principles of the III Code.

1.2.4 Parties and Member States which already have a higher standard than prescribed in the Agreement, because they have implemented the provisions of the 1993 Torremolinos Protocol or a regional agreement for example, should not lower their standards when
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Protocol or a regional agreement for example, should not lower their standards when implementing the provisions of the Agreement. They should ensure that they do not take any actions which may inadvertently undermine their pre-existing higher standards.

1.3 Scope

1.3.1 The Interim Guidance provides a clear distinction between the technical requirements applicable to new and those applicable to existing vessels.

1.3.2 The Agreement offers a wide range of flexibility in terms of implementation and application. The Interim Guidance provides information on available flexibility options for both new and existing fishing vessels, and, in particular, on options that are related to progressive implementation of provisions on existing fishing vessels.

1.3.3 This Interim Guidance covers areas like definitions, interpretation and application of the articles of the Agreement and the 1993 Torremolinos Protocol as well as application,
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the articles of the Agreement and the 1993 Torremolinos Protocol as well as application, exemptions, equivalents, surveys and certificates. There is a dedicated appendix dealing with the system of survey and certification, based on the structure of the Survey guidelines under the harmonized system of survey and certification (HSSC) , 2023, adopted by resolution A.1186(33). It is noted that the Agreement is currently not a relevant instrument of the HSSC.

1.3.4 Summary assistance tables for implementation have been inserted at the end of each section of part A and at the end of section 8 of part B of the Interim Guidance with the aim of facilitating the implementation of the Agreement. For reference, the responsibilities under the capacities as flag, port or coastal States in relation to the relevant provisions have been included. In addition, other supportive tools have been included for interest and assistance.
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included. In addition, other supportive tools have been included for interest and assistance.

1.3.5 The Interim Guidance provides information regarding some of the benefits of ratification, acceptance, approval or accession, as appropriate, and implementation of the Agreement. This includes the expected reduction of accidents and in particular collisions within the waters of the flag State, the reduction of potential costs of search and rescue operations and pollution risks, with a positive impact on the national economy, resources and the environment.

1.3.6 Additionally, to assist Parties, Member States and stakeholders in the industry, the appendices provide guidelines for flag States, including abandon ship training and drills, radio equipment, shipborne navigational equipment, fire -fighting measures and life -saving appliances summary tables.

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appliances summary tables.

1.3.7 Member States ratifying or acceding to the Agreement need to ensure the provisions of the Agreement are reflected in their national law. This should also be supplemented by implementation measures. Parties should also ensure that there is coherence with th eir existing body of fishing vessel safety legislation and that there is a clear set of requirements communicated to the sector. Particular attention should be given to the case where a flag State has a pre -existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State. It is also important that any conflict of laws is avoided in such situations and that there is clarity for the
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important that any conflict of laws is avoided in such situations and that there is clarity for the industry as to what standards apply.

1.3.8 Parties should provide for measures to ensure compliance with the provisions of the Agreement to ensure effective enforcement of the Agreement.

SECTION 2 OVERVIEW OF THE AGREEMENT

2.1 Application and entry-into-force criteria of the Agreement

2.1.1 Unless expressly provided otherwise, the provisions of the Agreement apply to new fishing vessels of 24 metres in length and over.

2.1.2 The Agreement applies to seagoing fishing vessels including vessels also processing their catch entitled to fly the flag of a Party. Its provisions do not apply to vessels exclusively used:

.1 for sport or recreation;

.2 for processing fish or other living resources of the sea;

.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

2.2.1 The Agreement , which updates and amends a number of provisions of the 1993 Torremolinos Protocol, consists of articles, an annex and an appendix as follows:

ARTICLES OF THE AGREEMENT

Article 1 General obligations2

Article 2 Interpretation and application of the 1993 Torremolinos Protocol and the 1977 Torremolinos Convention3

Article 3 Signature, ratification, acceptance, approval and accession

Article 4 Entry into force

2 Article 1 provides information to the Parties to the Agreement on general obligations. It also states that the annex to the Agreement shall constitute an integral part of the Agreement and a reference to the Agreement shall constitute at the same time a reference to the annex thereto.

3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol
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3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol shall apply to the Agreement. In applying these articles, the regulations in the annex to the 1993 Torremolinos Protocol, and the regulations in the annex to the 1977 Torremolinos Convention, a reference to "the present Protocol", or to "the Convention", respectively, shall be deemed to mean a reference to the Agreement. (See also articles of the 1993 Torremolinos Protocol relating to the Agreement).

ARTICLES OF THE 1993 TORREMOLINOS PROTOCOL RELATING TO THE AGREEMENT

Article 1 General obligations

Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

Article 6 Communication of information

Article 7 Casualties to fishing vessels5

Article 8 Other treaties and interpretation

Article 11 Amendments

Article 12 Denunciation

Article 13 Depositary

Article 14 Languages

ANNEX REGULATIONS FOR THE CONSTRUCTION AND EQUIPMENT OF FISHING VESSELS

Chapter I General provisions

Chapter II Construction, watertight integrity and equipment

Chapter III Stability and associated seaworthiness

Chapter IV Machinery and electrical installations and periodically unattended machinery spaces

Part A General

Part B Machinery installations

Part C Electrical installations

Part D Periodically unattended machinery spaces

4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.

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4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.

5 Interim Guidance regarding article 7 of the 1993 Torremolinos Protocol is provided under section 8.
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Chapter V Fire protection, fire detection, fire extinction and fire fighting

Part A General

Part B Fire safety measures in vessels of 60 metres in length and over

Part C Fire safety measures in vessels of 45 metres in length and over but
less than 60 metres

Chapter VI Protection of the crew

Chapter VII Life-saving appliances and arrangements

Part A General

Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

Chapter IX - Radiocommunications

Part A Application and definitions

Part B Ship requirements

Chapter X Shipborne navigational equipment and arrangements

APPENDIX CERTIFICATES AND RECORD OF EQUIPMENT

1 Form of Safety Certificate for Fishing Vessels

2 Form of Exemption Certificate

3 Form of Supplement to the International Fishing Vessel Safety Certificate

SECTION 3 APPLICATION AND SURVEYS

3.1 Application, exemptions and equivalents (regulations I/1 to 5)

3.1.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes:

1. Administrations may decide to use gross tonnage (GT) in place of length (L) as the basis for measurement for all chapters. For those Administrations, the Agreement will not apply to vessels
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measurement for all chapters. For those Administrations, the Agreement will not apply to vessels of less than 300 GT (regulation I/1(2) to (3)).

2. Where a Party has concluded that it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels, the Party may, in accordance with a plan, progressively implement the provisions of these chapters over a period of up to five or 10 years, depending on the chapter (regulation I/1(4) to (5)).

3. The Agreement offers several possibilities to Administrations to exempt vessels from its requirements. Administrations may, for example, exempt any vessel from any of the requirements of all chapters of the Agreement, provided the vessel complies with adequate safety requirements to ensure the overall safety of the vessel and persons on board and that the vessel is not operating on the high seas (regulation I/3(3)).

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on the high seas (regulation I/3(3)).
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CHAPTER I GENERAL PROVISIONS SUMMARY

3.1.2 Chapter I deals with general matters, surveys and certification. It contains general provisions for:
.1 application (regulation 1);

.2 definitions (regulation 2);

.3 exemptions (regulation 3);

.4 equivalents (regulation 4); and

.5 repairs, alterations and modifications (regulation 5).

GUIDANCE FOR IMPLEMENTATION

Tonnage/length equivalents (regulations I/1(2) to (3))

3.1.3 All chapters of the Agreement use vessel length (L) as the basis for measurement. However, many flag Administrations use vessel gross tonnage in their national legislation for that purpose and may wish to use it when implementing the provisions of the Agreement.
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that purpose and may wish to use it when implementing the provisions of the Agreement.

1. The Agreement allows the Administration to use gross tonnage (GT), as specified in regulation I/1(2), in place of length (L) as the basis for measurement for all chapters.

2. Each Party which avails itself of this possibility shall communicate to the Organization the reasons for that decision.

Progressive implementation (regulations I/1(4) to (5))

3.1.4 It may not be possible for some countries to implement all of the measures of the Agreement at the same time.

3.1.5 A Party to the Agreement that has concluded it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels may progressively implement those measures in accordance with a plan. The provisions of chapter IX may be implemented over a period of no more than 10 years , the provisions of

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chapter IX may be implemented over a period of no more than 10 years , the provisions of chapters VII, VIII and X over a period of no more than five years.

3.1.6 A "Party" is defined in the Agreement as a State for which the Agreement has entered into force (article 2(a) of the 1993 Torremolinos Protocol). As the term "Party" is used in the provisions concerning the progressive implementation (regulation I/1(4) to (5)) instead of the term "Administration", it indicates that these provisions will only apply when the Agreement comes into force for the State.

3.1.7 Therefore, for a State which deposits an instrument of ratification, acceptance , approval or accession, as appropriate, prior to the entry into force of the Agreement, the above-mentioned progressive implementation period will only start running when the Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the
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Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the Organization provide the information that is specified in regulation I/1(5).

3.1.9 The following table provides a summary of the application of the provisions of the Agreement, including the phased implementation (progressive implementation) on existing vessels.

TABLE 1: APPLICATION SUMMARY

Chapter

Application 1)
New vessels 2) Existing vessels
24-45 m
or
300-950
GT
45 m
or
950 GT
24-45 m
or
300-950 GT
45m
or
950 GT
Time to
implement after
entry into force
3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery

N/A
V Fire safety
---

3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery

N/A
V Fire safety

N/A
VI Crew protection

N/A
VII Life-savings
appliances

5) 5 years
VIII Emergency
procedures

5 years
IX Radiocommunications

10 years
X Navigational
equipment

5 years

Notes:
1) The flag Administration may decide to use gross tonnage (GT) in place of vessel length (L) as the basis for measurements for all chapters (regulation I/1(2)).

2) A new vessel is a vessel built after the entry into force of the Agreement (regulation I/2(1)).

3) A Party may, in accordance with a plan, progressively implement the provisions of chapters VII, VIII, IX and X on existing vessels (regulation I/1(4) to (5)).

4) The only requirements of chapter I that apply to existing vessels are in regulations I/2 to 5.

5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and
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5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and radar transponders (regulations VII/1(2) and VII/13 to 14).

Exemptions (regulation I/3)

3.1.10 The Agreement offers several possibilities to Administrations to exempt vessels from its requirements.

3.1.11 Administrations may exempt any vessel which embodies features of a novel kind from any of the requirements of chapters II, III, IV, V, VI and VII according to conditions provided in regulation I/3(1). The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(1) and I/3(4) provide further details on this.

3.1.12 Exemptions from the requirements of chapter IX are dealt with in regulation IX/3 and exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to

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exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(2) and I/3(4) provide further details on this.

3.1.13 Administrations may exempt any vessel from any of the requirements of any chapter of the Agreement, if they consider that the application is unreasonable and impracticable in view of the type of vessel, the weather conditions and the absence of general navigational hazards, provided:

.1 the vessel complies with adequate safety requirements for the service for which it is intended and are such as to ensure the overall safety of the vessel and persons on board;
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it is intended and are such as to ensure the overall safety of the vessel and persons on board;

.2 the vessel is operating solely in: (i) a common fishing zone under the jurisdiction of neighbouring States; or ii) the EEZ of the flag State; or (iii) the EEZ or a marine area under the jurisdiction of another State, in accordance with an agreement between the States concerned in accordance with international law; and

.3 the Administrations notify the Organization of the terms and conditions on which such exemption is granted.

3.1.14 Regulation I/3(3) provides more detailed information on this.

Equivalents (regulation I/4)

3.1.15 Instead of following the requirements of the Agreement regarding a particular fitting, material, appliance or apparatus, or type thereof, to be fitted or carried in a vessel, the Agreement permits the Administration to allow equivalents. This is if the Administration is satisfied by trial

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permits the Administration to allow equivalents. This is if the Administration is satisfied by trial thereof or otherwise that an equivalent is at least as effective. The particulars of such equivalents, together with a report on any trials made, shall be communicated to the Organization. Regulation I/4 provides further details on this.

Repairs, alterations and modifications (regulation I/5)

3.1.16 A vessel that undergoes repairs, alterations, modifications and related outfitting shall continue to comply with at least the requirements previously applicable to the vessel.

3.1.17 Repairs, alterations and modifications of a major character and related outfitting shall meet the requirements for a new vessel only to the extent of such repairs, alterations and modifications and as the Administration deems reasonable and practicable.

3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

.1 any change that substantially alters the dimensions of a vessel, e.g. lengthening by adding new mid-body; or

.2 any change that substantially increases the efficiency of a vessel and/or prolongs the vessel's service life, e.g.:

.1 renewal of more than 50% of crew accommodations;

.2 renewal of propulsion machinery and/or wheelhouse;

.3 renewal of deck machinery and/or winch system;

.4 renewal of fish processing equipment; and

.5 renewal of refrigeration systems for the preservation of the catch.

3.1.19 Regulation I/5 provides further details on this.
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 14

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Summary assistance table for implementation

Regulation to implement Content

Summary assistance table for implementation

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Repairs,
alterations and
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3.2 Surveys and certificates (regulations I/6 to 17)

3.2.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes:

1. Administrations may entrust the inspections and surveys either to surveyors nominated for the purpose or to organizations recognized by it (regulation I/6(1)).

URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
purpose or to organizations recognized by it (regulation I/6(1)).

2. Administrations may exempt vessels from the annual surveys if it considers the application is unreasonable and impracticable and expand the "time window" of the periodical and intermediate surveys (regulation I/1(6), 7(1)(c), 8(1)(c) and 9(1)(c)).

CHAPTER I SURVEYS AND CERTIFICATES SUMMARY

3.2.2 Chapter I also deals with survey and certification requirements. It makes provisions for:

.1 inspections and surveys and the nomination of surveyors or recognized organizations by the Administration (regulation 6);

.2 surveys on the life -saving appliances and other emergency equipment (regulation 7);

.3 survey on the radio installations (regulation 8);

.4 survey on the structure, machinery and other equipment (regulation 9);

.5 maintenance of the condition of the vessel and its equipment after survey (regulation 10); and

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.5 maintenance of the condition of the vessel and its equipment after survey (regulation 10); and

.6 issuance of certificates, duration, forms of certificates and their acceptance, as well as certification and accompanying privileges (regulations 11 to 17).